

23SMCV04158 23SMCV04158

County: los-angeles

Division: Civil Law and Motion

Department: N

Hearing date: 2026-08-04

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SM%20%2CN%2C08%2F04%2F2026

Source SHA-256: ccfa141ff8ec22ce36d51f05371621fa0c6dce0078343c72b6f2eec1a7e10ee2

Case Number: 23SMCV04158 Hearing Date: August 4, 2026 Dept: N

TENTATIVE RULING

Plaintiff/Cross-Defendant Mike Khattab's Motion to Compel Deposition Appearance of Defendant Ahmedshah Patail is GRANTED. The parties shall meet and confer regarding the deposition of Defendant Ahmedshah Patail to occur within () days of entry of this order.

Plaintiff/Cross-Defendant Mike Khattab's Request for Monetary Sanctions is GRANTED in the reduced amount of \$1,575, payable by Defendant Ahmedshah Patail to Plaintiff/Cross-Defendant Mike Khattab and Plaintiff's counsel within thirty (30) days of entry of this order.

Plaintiff/Cross-Defendant Mike Khattab to give notice.

REASONING

Plaintiff/Cross-Defendant Mike Khattab ("Plaintiff") moves the Court for an order compelling Defendant Ahmedshah Patail ("Defendant") to appear for his deposition in accordance with the deposition notice served on her. Plaintiff represents that he served Defendant with a Notice of Deposition on May 22, 2026, for the deposition to occur on June 5, 2026, and Defendant failed to appear on that date. (Mot., Pomerantz Decl. ¶¶ 5, 9, Exs. C, G.) Plaintiff represents that subsequent attempts to reschedule the deposition have failed. (Mot., Pomerantz Decl. ¶¶ 10-15.) Defendant has not filed an opposition to the motion.

"If, after service of a deposition notice, a party to the action . . . , without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice." (Code Civ. Proc., § 2025.450, subd. (a).) A motion to compel a party's deposition "shall be accompanied by a meet and confer declaration under Section 2016.040, or, when the deponent fails to attend the deposition and produce the documents, electronically stored information, or things described in the deposition notice, by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance." (Code Civ. Proc., § 2025.450, subd. (b)(2).) Code of Civil Procedure section 2016.040 describes that "[a] meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion."

Plaintiff is entitled to take Defendant's deposition, and Plaintiff provides evidence that Defendant failed to appear for examination without having served any valid objection to the notice of deposition, and no alternative dates have been provided. Accordingly, Plaintiff/Cross-Defendant Mike Khattab's Motion to Compel Deposition Appearance of Defendant

Ahmedshah Patail is GRANTED. The parties shall meet and confer regarding the deposition of Defendant Ahmedshah Patail to occur within () days of entry of this order.

Code of Civil Procedure section 2025.450, subdivision (g)(1), provides that if a motion to compel a deposition is granted, the Court shall impose monetary sanctions "in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." The Court finds that monetary sanctions are warranted here, as any issues with scheduling were due to Defendant's conduct alone, rather than that of former defense counsel. However, the Court reduces the monetary sanctions to \$1,575, representing one-and-a-half hours of attorney time relating to the failure to appear for deposition and three hours preparing the present motion and appearing at the hearing on the same, at a reduced hourly rate of \$350 per hour. Thus, Plaintiff/Cross-Defendant Mike Khattab's Request for Monetary Sanctions is GRANTED in the reduced amount of \$1,575, payable by Defendant Ahmedshah Patail to Plaintiff/Cross-Defendant Mike Khattab and Plaintiff's counsel within thirty (30) days of entry of this order.